



U.S. Department of Justice
Federal Bureau of Prisons
Administrative Division

Field Acquisition Office

Grand Prairie, Texas 75051

MARKET RESEARCH QUESTIONNAIRE

**Solid Waste Landfill Services
Federal Medical Center (FMC) Devens
Ayer, MA**

The Federal Bureau of Prisons (BOP), Field Acquisition Office (FAO), is conducting market research in compliance with Federal Acquisition Regulation, Part 10. The requirement is for the provision of **Solid Waste Landfill Services** for FMC Devens, located at 42 Patton Rd., Ayer, MA 01432.

The Government contemplates a single award of an indefinite delivery/requirements type contract with firm fixed prices that will consist of one (1) base year and four (4) additional twelve-month option years at the unilateral discretion of the Government. The NAICS code is **562212 (Solid Waste Landfill)**. The small business size standard is **\$47 million**.

A draft copy of the **Statement of Work** is attached to this questionnaire for more specific details. Additional details will be forthcoming in the solicitation. A Government solicitation document for this requirement is being developed, of which a contract may or may not result. Market research is being conducted to determine interest and capability of potential sources for this requirement.

THIS IS A SOURCES SOUGHT ANNOUNCEMENT ONLY – Solicitations are **not** available at this time. This notice does not constitute a commitment by the Government. The information gathered from market research will be vital in the formation and set-aside status of the solicitation.

THIS IS NOT A NEW REQUIREMENT – Services are currently in place for this requirement. The current incumbent is Devens Recycling Center, LLC. The contract was awarded in September 2023, in the amount of \$199,260.00 for one (1) base year and two (2) one-year options. This contract is set to end on September 30, 2026.

Please answer the following questions:

1. The North American Industrial Classification System (NAICS) code for **Solid Waste Landfill** is **562212**, which sets the small business size standard at **\$47 million**. (below \$47 million in gross revenues is considered small; above \$47 million in gross revenues is considered large). **Based on this standard, what is your business size?** _____ Small _____ Large
2. Is your company eligible for participation in one of the following small business programs? **If so, please indicate the program(s) below:**
 - _____ “8(a)” Program
 - _____ Women-Owned Small Business concern
 - _____ Economically Disadvantaged Women-Owned Small Business concern
 - _____ HUBZone Small Business concern
 - _____ Veteran Owned Small Business concern
 - _____ Service-Disabled Veteran-Owned Small Business concern
3. Is your company certified to provide services in **Masachusetts**? ____ Yes ____ No

4. Can your company provide these services as either the Prime Contractor or as a Subcontractor:

_____ **Prime Contractor** _____ **Subcontractor**

5. Does your company own and operate a permitted landfill? _____ **Yes** _____ **No**

6. If you are a small business, what level of subcontracting, if any, would your firm utilize? Services (except construction) require at least 50 percent of the cost of contract performance incurred for personnel shall be expended for employees of the concern. _____ %

7. If you plan to subcontract any portion of the requirement, will your firm be compliant with FAR 52.219-14? _____ **Yes** _____ **No**

8. Is your company able to provide readily available, qualified employees to fulfill **FMC Deven's** requirement as specified in the first paragraph? _____ **Yes** _____ **No**

9. Is your company registered in System for Award Management (SAM)? _____ **Yes** _____ **No**

****All potential quoters are advised if a solicitation is issued it will include the clause at FAR 52.204-7 (Oct 2018) for System for Award Management (SAM). This clause requires all contractors doing business with the Federal Government after September 30, 2003, to be registered in the SAM database. If your company is not registered in SAM, registration can be completed at: www.sam.gov**

10. Can your company provide **firm fixed unit pricing** for future contract periods (*for example:* a contract with a base year and four option years, equaling a total of five years)? **Please indicate the maximum number of years you can provide firm-fixed unit prices. (Quoters may offer varying prices for options)**

_____ **5 years** _____ **4 years** _____ **3 years** _____ **2 years** _____ **1 year only**

11. Are services of this type customarily available in the commercial marketplace? (Available to commercial business and industry or to the general public) _____ **Yes** _____ **No**

12. How many calendar days does your company need to prepare a proposal resulting from this solicitation?

_____ **15 days** _____ **30 days** _____ **45 days** _____ **60 days**

13. If awarded a contract, how many calendar days following an award would it take your company to begin providing services to the institution?

**** Please note that all individuals providing services at the institutions must undergo a security clearance investigation. This investigation may take 30 calendar days or longer to complete.**

_____ **Calendar days**

14. Does your company have an issue with the attached Statement of Work? _____ **Yes** _____ **No**

15. Has your company previously provided these types of services in a prison environment?

_____ **Yes** _____ **No**

16. Which of the following best describes your organization?

_____ **Non-Profit** _____ **Faith-Based** _____ **Corporation** _____ **LLC**

17. Please provide the following information in reference to your firm:

Name of Business: _____

Address: _____

Point of Contact: _____

Telephone Number: _____

E-mail Address: _____

UEI: _____ **CAGE:** _____

VENDOR WEBSITE: _____

I am extremely appreciative of the time you have taken to complete this questionnaire. Please email your response to me at sburke@bop.gov no later than May 12, 2026, at 10:00 am, EST.

Should you have any questions or concerns, please feel free to contact me.

Sincerely,

Sarah Burke

Sarah Burke, Contracting Officer
Federal Bureau of Prisons
U.S. Armed Forces Reserve Complex
Field Acquisition Office
346 Marine Forces Drive
Grand Prairie, TX 75051

NOTE: The resulting solicitation will be distributed solely through the System for Award Management website at www.sam.gov. Hard copies of the solicitation will not be available. The website provides downloading instructions to obtain all documents relating to the solicitation. All future information concerning this acquisition, including the pre-solicitation notice, solicitation, and any subsequent amendments, will be distributed solely through the website. Interested parties are responsible for monitoring the website to ensure they have the most up-to-date information about the acquisition.

STATEMENT OF WORK

Subject:

The Federal Bureau of Prisons (BOP), Field Acquisition Office (FAO), intends to make a single award of an Indefinite Delivery/Requirements type contract with firm-fixed prices, to a responsible contractor who can provide the services in accordance with the stated requirements. This requirement is for the provision of **Solid Waste Landfill Services** as prescribed in the description of duties listed below for the Federal Medical Center (FMC) Devens, located in Ayer, Massachusetts. General information regarding the institution and the Federal Bureau of Prisons and its facilities is located at www.bop.gov.

Place of Performance:

Services will be performed at the contractor's disposal facility. The facility must be approved by the Commonwealth of Massachusetts Department of Health and Environment, operated in accordance with all Federal, State and Local codes and laws, and meet EPA requirements and standards.

The disposal facility shall be located within a 10-mile (one-way) radius of the FMC.

FMC Devens
42 Patton Road
Ayer, MA 01432

Scope of Services:

FMC Devens will transport garbage and construction debris to the contractor's disposal facility utilizing a government owned vehicle. Upon delivery, the contractor shall assume ownership of all trash, garbage and construction debris from the Government owned containers, which is not hazardous waste as defined by federal, state or local laws or regulations ("Hazardous Waste"), once the unloading at the transfer site is complete. The contractor will be fully responsible for the disposal of the nonhazardous trash, garbage and construction debris materials in a lawful and proper manner. FMC warrants that FMC shall not deliver any Hazardous Waste and title to Hazardous Waste shall remain with FMC at all times.

The Government estimates they will deliver 540 tons per year of solid waste; however, there is no guarantee regarding the estimated tonnage, as quantities will vary on a per delivery, weekly, monthly and yearly basis. The Contractor will be required to provide the Government with documentation of the tonnage for each delivery.

Schedule:

The FMC estimates deliveries to the contractor's disposal facility will occur on a weekly basis, Monday thru Friday, between the hours of 8:00a.m. to 4:00 p.m. local time, excluding Federal holidays. It is estimated that there will be three loads per week.

Minimum Qualifications:

The contractor must be properly certified and / or licensed to perform waste disposal in the Commonwealth of Massachusetts. The contractor agrees to follow all Federal, State and local laws and regulations.

Supplies:

The dumpster(s) and compactor(s) will be provided by the Government. All other supplies to be provided by the Contractor.

Inmate Management:

The contractor will not be responsible for the management of inmates. The contractor should not give anything to an inmate or accept anything from an inmate that does not pertain to the scope of work. If the Contractor personally knows the inmate driving/delivering waste to the landfill, the Contracting Officer Representative (COR) should be notified immediately.

Point of Acceptance: The point of acceptance for services is at the contractor's disposal facility.